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FIRST-TIER TRIBUNAL IMMIGRATION APPEAL



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FIRST-TIER TRIBUNAL IMMIGRATION APPEAL

If your UK visa or immigration application has been refused, our immigration appeal lawyers can advise you on the merits of appealing to the First-tier Tribunal (Immigration and Asylum Chamber), prepare your immigration appeal and represent you at your immigration appeal hearing.

On this page we look at who has a right of appeal to the First-tier Tribunal (Immigration and Asylum Chamber), when a human rights or protection claim is appealable, limitations on the right of appeal, time limits for appealing to the First-tier Immigration Tribunal, grounds of appeal in immigration cases, how to appeal to the First-tier Tribunal, immigration appeal processing times and a number of frequently ask questions regarding appeals to the First-tier Tribunal.

We have separate pages for immigration appeals to the **Upper Tribunal** (<https://immigrationbarrister.co.uk/personal-immigration/immigration-appeals/upper-tribunal-immigration-appeal/>), **Administrative Review** (<https://immigrationbarrister.co.uk/personal-immigration/immigration-appeals/uk-visa-administrative-review/>) and **Judicial Review** (<https://immigrationbarrister.co.uk/personal-immigration/immigration-appeals/immigration-judicial-review/>).

What is the First-tier Tribunal (Immigration and Asylum Chamber)?

The **First-tier Tribunal (Immigration and Asylum Chamber)** (<https://www.gov.uk/courts-tribunals/first-tier-tribunal-immigration-and-asylum>), also known as the First-tier Immigration Tribunal, is the first level of court responsible for determining appeals against decisions of the Home Office regarding entry clearance to the UK, permission to stay UK and deportation from the UK. The Immigration Tribunal is independent of the Ho Office and has the power to overturn Home Office refusal decisions.

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To discuss your immigration appeal with one of our immigration appeal barristers (<https://www.google.co.uk/search?q=immigration+barristers>) **contact our UK immigration appeal lawyers on 0203 617 9173 or complete our** (<https://www.google.co.uk/search?q=immigration+chambers+in+enquiry+form>) **enquiry form below.**

Right of Appeal to the First-tier Tribunal Against a UK Visa or Immigration Decision

Not all Home Office immigration decisions can be appealed. You will generally have a right of appeal to the First-tier Tribunal (Immigration and Asylum Chamber) if the Home Office has decided to:

- Refuse your **human rights claim** (<https://immigrationbarrister.co.uk/personal-immigration/human-rights/>) or **protection claim** (<https://immigrationbarrister.co.uk/personal-immigration/human-rights/refugee-protection/>) (also known as an ‘asylum claim’ or ‘humanitarian protection’) or revoke your protection status;
- Refuse you a residence document or deport you under the Immigration (European Economic Area) Regulations 2016 (where saving provisions apply);
- Revoke your **British citizenship** (<https://immigrationbarrister.co.uk/personal-immigration/british-citizenship/>);
- Refuse or revoke your status, vary the length or condition of your stay, or deport you under the **EU Settlement Scheme** (<https://immigrationbarrister.co.uk/personal-immigration/eea-nationals-family/>);
- Refuse or revoke your travel permit or family permit under the EU Settlement Scheme or restrict your rights to enter or leave the UK under those permits;
- Refuse or revoke your permit, or deport you if you are a **frontier worker** (<https://immigrationbarrister.co.uk/personal-immigration/other-work-visas/frontier-worker-permit/>);
- Refuse or revoke your leave, or deport you if you are an S2 healthcare visitor.

If the Home Office has certified your asylum or human rights claim as “clearly unfounded” then you will not have a right of appeal. However, you may be able to challenge the certification of your claim through a **Judicial Review** (<https://immigrationbarrister.co.uk/judicial-review-in-immigration-law-the-basics/>).

If you do not have a right to appeal because the decision you wish to challenge is not an appealable immigration decision, you may still be able to ask the Home Office for an **Administrative Review** (<https://immigrationbarrister.co.uk/personal-immigration/immigration-appeals/uk-visa-administrative-review/>). Only certain types of application carry a right of Administrative Review if refused.

It is sometimes possible to appeal, even where the Home Office asserts that you do not have a right to do so, but you will need to argue jurisdiction before the Tribunal. An example may include a **returning resident visa** (<https://immigrationbarrister.co.uk/personal->

immigration/settlement-in-the-uk/returning-resident-visa/) where there are strong family ties. (<https://www.google.co.uk/search?q=richmond+chambers+in+the+uk>)

If you are not sure whether your refusal decision includes a right of appeal to the First-tier Tribunal (Immigration and Asylum Chamber), our immigration appeal lawyers in London can advise you.

What Is an Appealable Human Rights Claim?

In this section we look at when a person may appeal to the First-tier Tribunal (Immigration and Asylum Chamber) in relation to a human rights claim.

Applications Submitted From Within the UK

Certain immigration applications submitted from within the UK under the Immigration Rules are deemed to be human rights applications and have a right of appeal against refusal.

The following in-country applications under the Immigration Rules generally attract a right of appeal against a refusal decision:

- **Long Residence** (<https://immigrationbarrister.co.uk/personal-immigration/settlement-in-the-uk/long-residence-ilr/>) applications;
- Appendix FM family member applications (this would include decisions to refuse to extend a **spouse visa** (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/spouse-visa/>), **civil partner visa** (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/civil-partner-visa/>) or **unmarried partner visa** (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/unmarried-partner-visa/>));
- Part 8 family member applications;
- Private Life applications;
- Partner or child of a member of HM Forces applications.

Some applications for leave to remain outside the Immigration Rules may also be treated as a human right claim with a right of appeal against a refusal decision.

In this context, a human rights claim is defined as any claim made by a person that to remove them from or require them to leave the UK or to refuse them entry into the UK would be unlawful under section 6 of the Human Rights Act 1998.

Applications Submitted Outside the UK

The following out-of-country applications under the Immigration Rules generally attract a right of appeal against refusal:

- Appendix FM family member applications (this includes decisions to refuse a **spouse visa** (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/spouse-visa/>), **civil partner visa** (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/civil-partner-visa/>) or **unmarried partner visa** (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/unmarried-partner-visa/>));

visas/spouse-visa/), civil partner visa (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/civil-partner-visa/>), unmarried partner visa (<https://www.google.co.uk/search?q=immigrationbarrister.co.uk/personal-immigration/partners-family-visas/unmarried-partner-visa/>), fiancé visa (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/fiance-visa/>) and adult dependent relative visa (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/adult-dependent-relative-visa/>);

- Part 8 family member applications;
- Partner or child of a member of HM Forces applications;

Outside the UK, a human rights claim outside the Immigration Rules would need to form part of a valid application for entry clearance on a route under the Immigration Rules. For example, a **visit visa** (<https://immigrationbarrister.co.uk/personal-immigration/short-stay-visit-visas/>) application submitted overseas could include a human rights claim that leave as a visitor should be granted outside the rules. If the Home Office considers that a human rights claim has been made then any refusal decision will generally carry a right of appeal.

What is an Appealable Protection Claim?

In this section we look at when a person may appeal to the First-tier Tribunal (Immigration and Asylum Chamber) in relation to a protection claim.

Protection claims include asylum claims and claims from those who may fall outside the Refugee Convention but believe they qualify for humanitarian protection because, if removed from the UK, they will be at risk of serious harm, as defined in the Immigration Rules.

The following protection claims generally attract a right of appeal against a refusal decision:

- A claim that removal from the UK would breach the UK's obligations under the Refugee Convention;
- A claim that removal from the UK would breach the UK's obligations in relation to persons eligible for humanitarian protection.

Limitations on Rights of Appeal to the First-tier Immigration Tribunal

If the Home Office certifies a human rights or protection claim as '**clearly unfounded**' (<https://immigrationbarrister.co.uk/certification-of-a-human-rights-claim-as-clearly-unfounded-and-how-to-avoid-it/>) then there is no right of appeal to the First-tier Tribunal (Immigration and Asylum Chamber).

Where further submissions are rejected as not amounting to a fresh claim under paragraph 353 of the Immigration Rules, there is no human rights or protection claim to certify and so there is also no right of appeal.

A certificate can be challenged by way of judicial review. The merits of a challenge will depend on the evidence submitted with the original application and the basis for any refusal. You may wish to seek expert advice from an immigration appeal lawyer in this regard.

Other Appealable Immigration Decisions

As set out above, other Home Office immigration decisions may be appealable to the First-tier Immigration Tribunal, including certain decisions under the Immigration (European Economic Area) Regulations 2016 and EU Settlement Scheme, as well as decisions to revoke British citizenship.

To discuss the possibility of appealing to the First-tier Tribunal (Immigration and Asylum Chamber) against an immigration refusal decision, contact our immigration appeal lawyers in London.

Time Limits to Appeal to the First-tier Immigration Tribunal

If you are in the UK and you have an in-country right of appeal, you will have 14 calendar days to appeal, from the date the decision notice was sent.

If you are outside the UK, you will have 28 calendar days to lodge an appeal, from the date when you received the decision.

The time limit to appeal against a decision relating to the EU Settlement Scheme, where an administrative review application has been made, can, in some circumstances, begin from the date that the decision on administrative review is received.

It is important to remember that the time limit for lodging an immigration appeal to the First-tier Tribunal (Immigration and Asylum Chamber) is calculated in calendar days, not business days. It is only when the last day for appealing falls on a day other than a working day that an appeal is in time if lodged the next working day. Working day means any day except a Saturday or Sunday, Christmas Day, Good Friday or a bank holiday, and 27th to 31st December inclusive.

An appeal can be made out of time where the Immigration Tribunal agrees to extend the time limit for appealing. Your notice of appeal will need to include an application for an extension of time and the reason why the notice of appeal was not provided in time.

Grounds of Appeal to the Immigration Tribunal

The grounds on which an appeal can be brought before the First-tier Tribunal (Immigration and Asylum Chamber) are set out in immigration law.

An appeal against the refusal of a human rights claim may only be brought on the ground that the decision is unlawful under section 6 of the Human Rights Act 1998 (<https://www.google.co.uk/search?q=richmond+chambers+in>)

An appeal against a refusal of a protection claim must be brought on one or more of the following grounds:

- Removal of the appellant from the UK would breach the UK's obligations under the Refugee Convention;
- Removal of the appellant from the UK would breach the UK's obligations in relation to persons eligible for a grant of humanitarian protection;
- Removal of the appellant from the UK would be unlawful under section 6 of the Human Rights Act 1998 (public authority not to act contrary to Human Rights Convention)

An appeal against the revocation of refugee status or humanitarian protection may only be brought on the grounds that removal would breach the UK's obligations under the Refugee Convention, or that removal would breach the UK's obligations in relation to persons eligible for a grant of humanitarian protection

An appeal against a decision to refuse a residence document or deport under the Immigration (European Economic Area) Regulations 2016 may only be brought on the ground that the decision breaches the appellant's rights under the EU Treaties in respect of entry to or residence in the United Kingdom.

Appeals against decisions under the Immigration (Citizens' Rights Appeals) (EU Exit) Regulations 2020, including decisions on applications made under the EU Settlement Scheme, may be brought on the ground that the decision breaches any right which the person has under the EU withdrawal agreement, the EEA EFTA separation agreement or the Swiss citizens' right agreement or is not in accordance with the provisions of the Immigration Rules, Immigration Act or Regulations (as appropriate) by virtue of which it was made.

- **How to Appeal a UK Visa or Immigration Decision**
(<https://immigrationbarrister.co.uk/how-to-appeal-a-uk-visa-or-immigration-decision/>)

How to Appeal Against a UK Visa or Immigration Decision

We start most immigration appeals online using the **MyHMCTS** (<https://www.gov.uk/guidance/myhmcts-online-case-management-for-legal-professionals>) service. However, if you have been refused **pre-settled status** (<https://immigrationbarrister.co.uk/personal-immigration/eea-nationals-family/eu-settlement-scheme-pre-settled-status/>) or **settled status** (<https://immigrationbarrister.co.uk/personal-immigration/eea-nationals-family/eu-settlement-scheme-settled-status/>) under the EU Settlement Scheme, or you are in detention, we will appeal using a paper form.

When we submit your immigration appeal, we will usually ask for a decision to be made at an immigration appeal hearing that you and **your immigration barrister** (<https://immigrationbarrister.co.uk/about-us/our-team/>) can attend. <https://www.google.co.uk/search?q=immigration+chambers+in+London> It is also possible to request that a decision be made solely on the basis of the information that we include on your appeal form and the documents that we submit to the tribunal.

Once your immigration appeal has been submitted, as your immigration appeal lawyers, we will work hard to build your case, including by drafting an 'appeal skeleton argument' (ASA) (a summary of your case, a schedule of issues and reasons why we disagree with the decision) and uploading supporting witnesses statements and documentary evidence.

The Immigration Tribunal will then forward the ASA and our bundle of supporting documents to the Home Office. The Home Office will then carry out a review. The review is an important way to narrow the issues and, on many occasions, reach agreement as to the way forward, including by way of withdrawal with a view to a grant.

A well prepared immigration appeal can lead to a meaningful review and potentially avoid the need for the matter to proceed to an appeal hearing before an Immigration Judge. It is therefore extremely important that the Home Office is provided with all necessary information and that appeal arguments are clearly and succinctly advanced.

If your appeal proceeds to a hearing, the Immigration Tribunal will actively manage your case. Active case management can lead to the making of direction to the parties, the conduct of pre-hearing reviews, or the listing of case management review hearings.

Once all the parties are ready, you will receive notice of the date and location of your appeal hearing before an Immigration Judge of the First-tier Tribunal (Immigration and Asylum Chamber). You may be asked to attend the tribunal building in person, or you may be asked to attend remotely via video link or phone. Either way, your immigration barrister will accompany you on the day of the hearing, ask relevant questions of any witnesses and make legal submissions to the Immigration Judge as to why your appeal should be allowed.

First-tier Tribunal Immigration Appeal Processing Times

How long does it take to get a hearing date for a First-tier Immigration Tribunal hearing?

The length of time that it takes to receive a hearing date for a First-tier Immigration Tribunal hearing varies from case to case. It can take several months for an immigration appeal to be listed for hearing.

How long does it take for an Immigration Judge to make a decision?

Once your immigration appeal has been heard, the Immigration Judge hearing the case will issue a determination telling you whether your appeal has been allowed or not. You will not usually receive a decision on the day of the appeal hearing. However, most decisions of the First-tier Immigration Tribunal are promulgated within about 3 to 4 weeks.

Urgent Immigration Appeals

If you consider that your immigration appeal should be dealt with urgently, it is possible to request an expedited hearing date. You will need to demonstrate compelling or compassionate grounds for your case to be heard urgently, supported by documentary evidence. A judge will review the evidence and decide whether your appeal should be heard sooner than usual.

Immigration Appeal Fees

Where an immigration appeal fee is applicable, the appeal fee for a paper immigration appeal is £80 and the appeal fee for an oral hearing is £140.

There is no applicable fee if an appeal relates to a decision to deprive British citizenship, a decision to remove an EEA national pursuant to the EEA Regulations, the revocation of protection status or where an appellant is detained and has received a decision by the Detained Asylum Casework team at the Home Office. There are other circumstances in which you may be exempt from paying a fee.

If your immigration appeal is allowed, you can ask the Judge to consider a fee award or the Judge may consider this of their own volition. This will depend on whether the evidence and points have been raised properly and adequately, giving the Respondent the opportunity to consider all matters properly.

To discuss the merits of an immigration appeal with one of our immigration barristers, contact our immigration appeal lawyers on 0203 617 9173 or complete our enquiry form below.

First-tier Tribunal (Immigration and Asylum Chamber) Immigration Appeal

Frequently Asked Questions

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What is my immigration status during an appeal to the First-tier Tribunal (Immigration and Asylum Chamber)?

Under section 3C of the Immigration Act 1971, your leave to enter or remain will have automatically extended if you had leave when you made your application or claim and that leave expired before the Home Office made a decision. If this applies to you then your leave will be extended until any in-time appeal against refusal is finally determined.

If the deadline to appeal has passed, your leave extended by section 3C will have come to an end. Section 3C leave will only revive if an extension of time to bring an out-of-time appeal is granted by the Tribunal, but only from the point permission is granted.

Can I leave the UK while my immigration appeal to the First-tier Tribunal is pending?

If you have appealed to the First-tier Tribunal from within the UK and you leave the UK while your immigration appeal is pending, your immigration appeal will be treated as abandoned, unless the underlying claim was certified as clearly unfounded.

If your leave is extended by virtue of section 3C of the 1971 Act, leaving the UK will also bring this leave to an end.

Can I enter the UK while my immigration appeal to the First-tier Tribunal is pending?

If you have appealed against a refusal of entry clearance from outside the UK, there is nothing to prevent you from continuing your appeal from within the UK, for instance in order to give evidence at the appeal hearing. You may consider applying for a **visit visa** (<https://immigrationbarrister.co.uk/personal-immigration/short-stay-visit-visas/>) for this purpose or, if a non-visa national, applying for leave to enter as a visitor at the UK border. Your recent refusal decision would need to be declared and addressed as part of any such application.

Can I make a fresh application instead of, or as well as, appealing to the First-tier Immigration Tribunal?

Depending on the basis for the refusal, it may be possible to consider making a further application to the Home Office, either in addition to appealing or as an alternative. Whether this is possible will depend on the individual circumstances and whether there is extant leave or other options available. You may wish to seek specialist advice from an immigration appeal lawyer in relation to your position.

It will not be possible to make a further application if your application has been refused, an appeal (or administrative review application) has been brought against that refusal and your leave has been extended by virtue of section 3C. However, Home Office guidance allows immigration barristers to represent clients in the First-tier Tribunal (Immigration and Asylum Chamber) and the Upper Tribunal. <https://www.gov.uk/guidance/immigration-barristers-in-the-first-tier-tribunal-immigration-and-asylum-chamber>

What will happen after I receive my immigration appeal decision?

If your immigration appeal is allowed, the Home Office may try to appeal the decision of the Immigration Judge of the First-tier Tribunal (Immigration and Asylum Chamber) to the Upper Tribunal. If the Home Office does not appeal, or if they appeal and are either not granted permission to appeal or their appeal is dismissed, the Home Office should reverse their decision and issue you with the appropriate immigration status document.

If your immigration appeal is refused by the First-tier Tribunal Immigration Judge, you may be able to appeal the Judge's decision to the Upper Tribunal. Your barrister will be able to review the decision of the Immigration Judge and advise you as to whether there are any grounds to appeal to the Upper Tribunal, as well as the merits of any further appeal.

How Our Immigration Barristers Can Help

Our immigration barristers work directly with individuals and businesses, within the UK and overseas, to prepare high quality appeals against Home Office visa and immigration refusal decisions and provide expert legal representation at immigration appeal hearings.

If you are looking to challenge a Home Office visa or immigration refusal decision before the First-tier Immigration Tribunal, our immigration barristers combine specialist legal advice and advocacy, with a professional and supportive approach.

Whether you require advice on the merits of appealing a refusal decision to the First-tier Immigration Tribunal, help with lodging an immigration appeal or representation by an immigration barrister at an immigration appeal hearing, our immigration appeal lawyers work directly with our clients, drawing on years of experience of preparing and presenting successful immigration appeals before the immigration courts.

We recognise that every client's circumstances are unique and our immigration appeal barristers provide tailored immigration law solutions designed to meet individual needs.

WE CAN ALSO ASSIST WITH

Immigration Appeals to the Upper Tribunal



Applications for UK Visa Administrative Review



Applications for Immigration Judicial Review

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Immigration Appeal Hearings: What to Expect

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By Taya Sayekaya - Immigration Barrister

16 Jan 2025

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Confirming the Date and Location of Your Immigration Appeal Hearing 3. Who Attends the

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New Practice Direction for Immigration and Asylum Appeals

(<https://immigrationbarrister.co.uk/new-practice-direction-for-immigration-and-asylum-appeals/>)

By Jasmine Theilgaard - Immigration Barrister

18 Dec 2024

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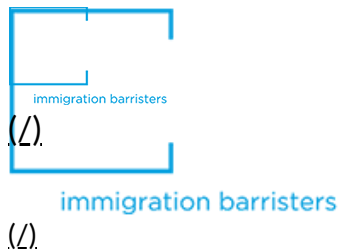
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